



September 21, 2021

Greg Byrnes
W. Glenn Sedam, Inc.
3165 Route 246
Perry, NY 14630

Dear Greg:

This letter of agreement sets forth the terms and conditions under which **W. Glenn Sedam, Inc. (d/b/a Sedam Tire)** (Client) and **239 Inwood Associates, Inc. (d/b/a cfo solutions)** (Company) agree to request and supply financial consulting services as described below.

Effective Date

This letter of agreement is made September 21, 2021 by and between Client and Company. This agreement is in effect at the will of each party for an unspecified term and may be ended by either party with a minimum of 30 days written notification.

Furthermore, any issues that might motivate the Client or the Company to consider ending the agreement will be itemized in a written notification. Both parties will have the opportunity to address these concerns to the satisfaction of each party, and in doing so, keep the agreement in effect. If the issues cannot be resolved, the agreement would then be ended.

Scope of Services

General consulting: under the terms of this agreement, the Client agrees to retain the Company to render financial consulting services, research, strategic development, analysis, planning, communication of financial results, and other financial consulting services determined to be needed and agreed to by Client.

Due Diligence: if Client agrees to keep Company on after having a signed letter of intent (LOI) from a buyer, Company will perform all necessary request of buyer and Client per the due diligence request/checklist.

Consultations

Company shall be available to consult with the officers of the Client and the heads of the administrative staff, at reasonable times, concerning matters pertaining to the organization, the fiscal policies of the Client, the relationship of the Client with its employees and its clients, and, in general, the important problems of concern in the business affairs of the Client. Company shall not represent the Client, its Board of Directors or Advisors, its

officers, or any other members of the Client in any transactions or communications nor shall the Company make claim to do so.

Compensation

- **Rate**

General Consulting rate is \$125.00 per hour. Additionally, the Company reserves the right to annually increase the service rate by 3%. A written notification will be given by the Company to the Client before rates are adjusted.

Due Diligence Success Fee will be 1% of gross price (see below) received by Client at closing of business sale.

- **Terms of payment**

The Company's general consulting invoice will be billed twice monthly (15th and the end of month) and payable within  business days of invoice date. The Company will supply documentation of the hours worked, plus any pre-approved out-of-pocket expenses incurred on the Client's behalf.

If Client invoices are not routinely paid within terms, the Company reserves the right to suspend work in progress.



In case of a Due Diligence Success Fee transaction, Client agrees to pay Company in full at closing the gross prices less hours paid to Company from the date of the LOI to the date of closing.

Gross price is the value the Client receives, as the result of the sale of its business to include, but is not limited to cash, securities, notes, liabilities assumed by buyer, earn-outs, or royalties, in exchange for Client's stock or assets.

- **Termination**

Upon termination of this agreement, the Client shall pay the Company in full for all services performed prior to termination, and the Company shall return to the Client all work in process and all confidential information of the Clients.

Liability

With regard to the services to be performed by the Company pursuant to the terms of this agreement, the Company shall not be liable to the Client, or to anyone who may claim any right due to any relationship with the Client, for any acts or omissions in the performance of services on the part of the Company or on the part of the agents or employees of the Company, except when said acts or omissions of the Company are due to willful misconduct or gross negligence.

The Client shall hold the Company free and harmless from any obligations, costs, claims, judgments, attorneys' fees, and attachments arising from or growing out of the services rendered to the Client pursuant to the terms of this agreement or in any way connected with the rendering of services, except when the same shall arise due to the willful misconduct or gross negligence of the Company.

Confidentiality

The Company, in the course of performing its services, may come in contact with trade secrets and/or confidential business information of the Client or its clients and suppliers, or may assist in the creation of confidential information for the Client ("Confidential Information"). The Company agrees not to disclose Confidential Information or use Confidential Information for its own benefit or the benefit of any third party, and further agrees to use the Confidential Information solely to perform services on behalf of the Client per this agreement.

Additionally, the Company agrees not to disclose the Client's name without prior written consent.

Relationship between parties

The Client retains the Company only for the purposes set forth in this agreement. During the term of this agreement, the Company is an independent contractor and not an employee of the Client. The Company shall have no authority to act on behalf of the Client and shall not hold itself out as an employee of the Client. The Company agrees and represents that it is an independent contractor such that the Client shall not be required to withhold any Federal or New York State income tax or FICA/social security, and will not be required to provide Worker's Compensation, unemployment insurance, disability insurance or any other benefits normally associated with an employee.

Entire agreement

This agreement constitutes the entire agreement between the Company and the Client and may not be changed or modified except by an agreement in writing signed by both parties.

In acceptance by:

W. Glenn Sedam, Inc.
(d/b/a Sedam Tire)

By: _____

Date: _____

Title: _____

239 Inwood Associates, Inc.

(d/b/a cfo solutions)

By: _____

Date: 9/21/2021

Title: President